

Pradeep Kumar Sahoo vs State Of Odisha And on 22 August, 2023

Author: Biraja Prasanna Satapathy

Bench: Biraja Prasanna Satapathy

IN THE HIGH COURT OF ORISSA AT CUTTACK

W.P.(C) No.26349 of 2023

Pradeep Kumar Sahoo

....

Petitioner

Mr. A.K. Pandey, Advocate

-versus-

State of Odisha and
Others

....

Opposite Parties
State Counsel

CORAM:

JUSTICE BIRAJA PRASANNA SATAPATHY

ORDER

22.08.2023 Order No.

01. 1. This matter is taken up through Hybrid Arrangement (Virtual/Physical) Mode.

2. Heard learned counsel for the parties.

3. Learned counsel for both the parties agreed that the issue involved in this writ petition is analogues to one involved in O.A. No. 1668 of 2017 (Ashok Kumar Mohapatra v. State of Orissa), which was disposed of by the Odisha Administrative Tribunal vide judgment dated 09.10.2018 and confirmed by this Court in W.P.(C) No.6698 of 2020 and further confirmed by the apex Court in SLP(C) No.15573 of 2020.

4. In view of the above and considering the limited prayer to consider the case of the petitioner in the light of the judgment rendered in Ashok Kumar // 2 // Mohapatra (supra), this writ petition stands disposed of directing the competent authority to dispose of the case of the petitioner applying the decision rendered in the case of Ashok Kumar Mohapatra (supra) by undertaking the entire exercise within a period of two months from the date of communication of the order.

5. Petitioner is directed to serve an extra copy of the brief on learned State Counsel for School & Mass Education Department for communication purpose.

(Biraja Prasanna Satapathy) Judge Basudev Reason: Authentication of order Location: High Court of Orissa, Cuttack Date: 23-Aug-2023 17:15:44